

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 12  
SEPTEMBER 02, 2026  
8:30 a.m.

**2. ERNESTO MAZAR KINDELAN V. KARI GILSON**

**24FL0826**

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent on August 10, 2026, requesting the court to: (1) reconsider its order issued August 05, 2026,<sup>3</sup> wherein the court adopted the agreement and recommendations of the CCRC report dated July 22, 2026, as the orders of the court; and (2) modify visitation. On August 07, 2026, in connection with the RFO, Respondent filed an ex parte application for an order shortening time. On August 10, 2026, the court granted the request to shorten time, ordering Respondent to serve her RFO on or before August 17, 2026; and ordering Petitioner to file and serve a Responsive Declaration on or before August 24, 2026.

Proof of service filed August 17, 2026,<sup>4</sup> shows the RFO was electronically served upon Petitioner on August 16, 2026.

On August 17, 2026, Petitioner filed a request to reschedule the instant hearing. The court denied Petitioner's request.

On August 25, 2026, Petitioner filed an untimely Responsive Declaration, a copy of which was electronically served upon Respondent that same day per the proof of service, also filed August 25, 2026.<sup>5</sup> Despite its untimeliness, the court exercises its discretion to consider Petitioner's Responsive Declaration.

The court denies Respondent's motion for reconsideration because the RFO does not present any new facts, law, or circumstances, as required under Code of Civil Procedure section 1008. The court's denial of Respondent's request for oral argument on August 05, 2026, is not a sufficient basis for reconsideration under Code of Civil Procedure section 1008.

Turning to the issue of visitation, Respondent indicates she has secured a full-time teaching job. She requests that the exchange times are adjusted as follows: (1) on Fridays, Respondent requests to have the exchange take place at 6:00 p.m. instead of 5:15 p.m.; and (2) on Sundays, Respondent requests to have the exchange take place at 3:00 p.m. instead of 5:15 p.m.

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<sup>3</sup> On August 04, 2026, the court issued a tentative ruling. Respondent submitted an oral argument request. However, at the August 05 hearing, Petitioner objected on the grounds that the oral argument request was not properly served upon him under Local Court Rule 8.05.07. The court sustained Petitioner's objection and denied Respondent's request for oral argument.

<sup>4</sup> Respondent filed two separate proofs of service on August 17, 2026. The first proof of service shows proof of service of the RFO (apparently without attachments) by mail. The second proof of service shows electronic service of the RFO with attachments on August 16, 2026.

<sup>5</sup> The Responsive Declaration includes a total of 96 pages, including attachments and exhibits.

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Petitioner does not object to the proposed Friday exchange time but requests that Sunday exchanges also take place at 6:00 p.m.

The court grants Respondent's request in part. Friday and Sunday exchanges shall both take place at 6:00 p.m., in part, because it will help ensure continuity. In every other respect, the existing orders shall remain in full force and effect.

**TENTATIVE RULING #2: RESPONDENT'S RFO IS GRANTED IN PART AND DENIED IN PART. THE COURT DENIES RESPONDENT'S REQUEST FOR RECONSIDERATION. THE COURT ORDERS THAT BOTH FRIDAY AND SUNDAY EXCHANGES SHALL OCCUR AT 6:00 P.M. IN EVERY OTHER RESPECT, THE EXISTING ORDERS SHALL REMAIN IN FULL FORCE AND EFFECT.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.**